The Disappearance of Foreign Beef Labeling in America

Every year, billions of pounds of foreign beef enter the United States, and every pound competes directly with American cattle producers. Congress addressed foreign-origin identification nearly a century ago through Section 304 of the Tariff Act of 1930 (19 U.S.C. § 1304), requiring imported products, subject to statutory exceptions, to identify their country of origin for the ultimate purchaser. USDA's own regulation, 9 CFR § 327.14, specifically requires imported beef to bear its country of origin. Yet after entering the United States, foreign beef can be repackaged or processed in a federally inspected facility and lose that foreign identification. The result is foreign beef entering the American marketplace without its origin being disclosed to consumers, competing directly against beef produced by American cattlemen.

9 CFR 327.14 was passed in 1974. Known as The Federal Meat Inspection Act. It addresses, helps define and re-inflorces this very meat portion and description of the 1930 Tariff Act.

At the center of this labeling issue is a serious conflict between federal trade law and USDA's interpretation of its inspection authority. U.S. Customs and Border Protection applies the legal principle of substantial transformation to determine whether processing actually changes a foreign product's country of origin. Simply cutting, grinding, or repackaging foreign beef does not automatically meet that standard. Yet USDA allows imported beef to lose its foreign-origin identification through domestic processing or repackaging, even when that processing does not constitute substantial transformation under Customs law. The fundamental question is how USDA can allow the removal of foreign-origin identification when the processing involved has not changed the beef's country of origin under federal trade law.

This is not a debate over voluntary "Product of USA" labeling or an attempt to reinstate mandatory Country of Origin Labeling (COOL). This is about enforcing existing federal law and challenging an administrative interpretation that has allowed foreign beef to lose its identity in the American marketplace. American cattle producers bear the economic consequences of competing against imported beef whose foreign identity can disappear before reaching consumers. Consumers lose the ability to make informed purchasing decisions, and American cattlemen lose the market distinction associated with producing beef

domestically. Congress established country-of-origin protections in 1930. The question today is why those protections are being undermined by USDA's treatment of imported beef and why WE THE PEOPLE aim to hold the agency accountable.

At the heart of this matter is the influence lobbying groups like the Brazilian conglomerate JBS meat packing corporation has on our domestic law makers.

We will not allow a foreign agenda to globalize our otherwise prosperous national industry.

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